

Calendar Line # 6
Case Name American Express National Bank vs Abhisek Roy
Case No. 24CV454827
Motion for Summary Judgment/Adjunction I. <u>BACKGROUND</u> This case stems from a credit card collections case between Plaintiff American Express National Bank (“Bank”) and Defendant Abhisek Roy (“Roy”). On December 16, 2025, Plaintiff Bank filed this motion for summary judgment against defendant Roy. The motion was accompanied by a proof of service indicating mail service to the plaintiff on that same day. Notice is proper. The motion is unopposed. Per Code of Civil Procedure section 437c(b)(4) opposition papers were due on August 5, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 8 pages); statement of undisputed material facts (totaling 4 pages); request for judicial notice (totaling 7 pages); evidence in support of the motion (totaling 2 pages); Declaration of Vivian Hinds in support of the motion and attached Exhibits A-C (totaling 139 pages); judgment (totaling 1 page); proposed order (totaling 2 pages); memorandum of costs (totaling 2 pages); proof of service; and the pleadings. II. <u>LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, summary judgment is appropriate when there is no triable issue of material fact as to one or more elements of a particular cause of action. (Code Civ. Proc., § 437c, subds. (f)(1), (o)(1)). The court identifies the causes of action framed by the pleadings. The court then determines whether the plaintiff as the moving party has carried its burden to show that there is no defense to any cause of action by proving each element of the causes of action. (Code Civ. Proc., § 437c, subd. (p)(1)). If the plaintiff makes that prima facie showing, the burden of production shifts to the defendant to show that a triable issue of one or more material facts exists as to the causes of action, or a defense thereto. (<i>Ibid</i>). “The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (<i>Ibid</i>). III. <u>ANALYSIS</u> Here, the complaint alleges a single cause of action against defendant Roy: breach of contract. The elements are: (1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach. (<i>Aton Center, Inc. v. United Healthcare Ins. Co.</i> (2023) 93 Cal.App.5th 1214, 1230). Plaintiff’s motion is supported by evidence showing that defendant obtained a credit card account from plaintiff that was subject to a customer agreement contract; defendant accepted the terms of that contract by using the credit card; plaintiff extended credit and performed all its obligations under the contract; defendant breached the contract by not making all required payments; and plaintiff suffered damages of \$26,496.18 (i.e., the balance due on the credit card). The last payment on the account was on or about November 29, 2023. (Separate Statement #7). Plaintiff satisfied its initial burden as to both causes of action. Defendant did not oppose the motion. Plaintiff is entitled to summary judgment.

+Plaintiff filed a memorandum of costs on December 16, 2025, seeking \$956.99 in costs. Defendant forfeited any challenge to the amount of those costs by not timely filing a motion to tax costs. (Cal. Rules of Court, rule 3.1700(b)(1)).

IV. CONCLUSION

Based on the foregoing, Plaintiff's motion for summary judgment is GRANTED. Plaintiff has submitted a judgment indicating damages of \$26,496.18 in damages and \$956.99 in costs that the Court GRANTS and will authorize. The court will prepare the Order.

Calendar Lines # 7 - 8

Case Name AB Landscaping, Inc. vs Andrew J. Fry, as co-trustee of the Andrew Fry and Jin Z. Fry Family Trust et al

Case No. 25CV473100

Demurrer (Line # 7) and Motion to Strike (Line #8)

I. BACKGROUND

This construction dispute arises from a Complaint alleging five causes of actions for breach of contract, foreclosure of mechanics lien, common count, quantum meruit, and payment of penalties that was filed on August 19, 2025 by Plaintiff. Defendants/Cross-Complainants Andrew J. Fry and Jin Z. Fry filed a cross-complaint alleging fourteen causes of actions on October 8, 2025.

On January 7, 2026, Cross-Defendants AB Landscaping, Inc. and Victor Arellano (collectively Cross-Defendants) filed this demurrer (Line # 7) to all causes of action (*i.e.*, first through fourth, seventh, ninth through twelfth, and fourteenth causes of action) and motion to strike (Line # 8). The motions are accompanied by proof of electronic service on cross-complainants' counsel on January 2, 2026.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 12, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

II. LEGAL STANDARD

A. DEMURRER

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

B. MOTION TO STRIKE

Under Code of Civil Procedure section 435, "Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof." (Code Civ. Proc., § 435, subd. (b)(1)). Code of Civil Procedure section 436 provides: